

25NWLC49178 25NWLC49178

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-06-24

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Case Number: 25NWLC49178 Hearing Date: June 24, 2026 Dept: Y

25NWLC49178: SYNCHRONY BANK vs SERGIO MARTINEZ

Tentative Ruling:

The Court has read and considered the moving papers filed by Plaintiff Synchrony Bank, the supporting declaration, and all relevant court records.

In its motion, Plaintiff requests to vacate the Default Judgment entered on January 2, 2026 and dismiss the action without prejudice. Plaintiff has presented evidence via declaration that Plaintiff received notification that Defendant Sergio Martinez ("Defendant") claimed fraud on the account. Plaintiff has reviewed and confirmed the fraud claim.

Pursuant to Code of Civil Procedure section 473(b), the Court may set aside any judgment that was obtained by mistake or surprise. Code of Civil Procedure section 187 also grants jurisdiction to the Court to take appropriate action in the interests of justice.

Based on the declaration submitted by Plaintiff, the Court GRANTS Plaintiff's Motion to Set Aside and Vacate Default and Default Judgment. Accordingly, the Judgment entered against Defendant on January 2, 2026 is vacated.

The Court further orders that the Complaint filed by Plaintiff and against Defendant is DISMISSED with prejudice.

Plaintiff to give notice.